

Q.6b (15 marks): Single definition of marriage cannot be applied to all cultures

कीजिए।

"A single definition of marriage cannot be applied to all cultures." Discuss with examples. 15

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[Seligman] first define marriage as a union between a man and a woman such that children born to them are legitimate offspring of both the parents. (Notes & queries)

However, this definition is not universal because

(A) Structure: union between man and woman

(1) Excludes Ghost marriages
Among Kwakiwth (from Boas study)

(2) Exclusion of women to woman marriages (Nuer of South Sudan)

(3) Excludes polygamous marriages

↳ Polygyny: Munda, Naga, etc

→ Polyandry : khasa
of Jamnan Bawan


→ Polygyny

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(B) function : establish legitimacy of
offspring.

However, In simple society legitimacy
is not a function of law.

→ Today's purusutpinni (Bow &
arrow ceremony) to establish
fatherhood.

Thus, on the basis of her
study among Nayai's, J.K. Gough
tried to provide a near universal
definition as,

"A union between a woman and
one or more other person such that
children born to the woman under
normal circumstances are accorded
full birth status rights of members
common to their social stratum"

It tried to cover,

- a) Polygamous relationships : "woman
7 one or more other persons"
- b) Different conditions of parentage : "under
normal circumstances not prohibited
by rules of relationship"
- c) Differential birth status rights :
"common to members of their
social stratum."

However, it also includes,

- ① No society of China, where
formal marriage doesn't exist
(Cai Hua (2001))
- ② Ghost marriages of Kwakiutl
of British Columbia.

Thus, instead of devising
a universal definition, scholars
today prefer to define marriage
based on its functions